

Central Provinces and Berar Hindu Women's Rights to Property (Extension to Agricultural land) Act, 1942

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Central Provinces And Berar - Act

Central Provinces and Berar Hindu Women's Rights to Property (Extension to Agricultural land) Act, 1942

CENTRAL PROVINCES AND BERAR

India

Central Provinces and Berar Hindu Women's Rights to Property (Extension to Agricultural land) Act, 1942

Act 6 of 1942

Published on 6 June 1942

Commenced on 6 June 1942

[This is the version of this document from 6 June 1942.]

[Note: The original publication document is not available and this content could not be verified.]

Central Provinces and Berar Hindu Women's Rights to Property (Extension to Agricultural land) Act, 1942

(C.P. Act No. 6 of 1942)

Received the assent of the Governor on the 6th June, 1942; assent first published in the Central Provinces and Berar Gazette on the 12th June, 1942.

An Act to extend the operation of the Hindu Women's Rights to Property Act, 1937, amended by the Hindu Women's Rights to Property (Amendment) Act, 1938, to agricultural land.

Preamble. - Whereas the Hindu Women's Rights to Property Act, 1937, amended by the Hindu Women's Rights to Property (Amendment) Act, 1938, purports to give better rights to women in respect of property in general;

And Whereas many transactions have already taken place in the Central Provinces and Berar on the basis that women

had acquired better rights under the said Acts in respect of agricultural land as well as other kinds of property;
And Whereas it has now been established that the said Acts do not operate to give them better rights in respect of agricultural land;

Whereas in order to validate those transactions as well as to give women in future those better rights and for other purposes, it is expedient to extend the operation of the said Acts to agricultural land with retrospective effect, but with certain savings;

[And Whereas the Governor of the Central Provinces and Berar has assumed to himself under the proclamation, dated the 10th November, 1939, issued by him under section 93 of the Government of India Act, 1935, all powers vested by or under that Act in the Provincial Legislature;]

[The whole Act has been continued after 16th April, 1948, vide provisions of Central Provinces and Berar Act XLVIII of 1947, Section 2(1).]

Now, Therefore, in exercise of the said powers, the Governor of the Central Provinces and Berar is pleased to make the following Act :

1.

Short title and extent.

(1)

This Act may be cited as the Central Provinces and Berar Hindu Women's Rights to Property (Extension to Agricultural Land) Act, 1942.

(2)

It extends to the whole of [Vidarbha region of the State of Maharashtra]

[Substituted by A.O., 1956 and 1960.]

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2.

The term "property" in Act Nos. XVIII of 1937 and XI of 1938 to include agricultural land.

- The term "property" in the Hindu Women's Rights to Property Act, 1937, and the Hindu Women's Rights to Property (Amendment) Act, 1938, as in force in [Vidarbha region of the State of Maharashtra]

[Substituted by A.O., 1956 and 1960.]

, shall include, and shall be deemed always to have included, agricultural land :

Provided that, where any person, who, but for this Act, would have been entitled to any property, has been in possession or has made a transfer thereof, his possession till the commencement of this Act shall be deemed to be as lawful, and the transfer made by him shall be deemed to be as valid, as if this Act had not been passed.

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